

UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

ORDER NO. 8: AMENDING PROCEDURAL SCHEDULE

(May 5, 2026)

Complainants move to amend the procedural schedule to extend by about a week or less the deadlines to supplement responses to contention interrogatories, file the notice of prior art and any motions to compel, and complete fact and expert discovery. Motion Docket No. 1478-03 (EDIS Doc. ID 881161). The motion represents that respondents do not oppose. *Id.* at 1 and 4. According to complainants, good cause supports the extensions because they will “afford the Parties sufficient time to take numerous foreign depositions and incorporate that testimony into their contentions, thereby promoting accuracy and completeness.” *Id.* at 4. They also assert that “the Parties, the Commission, and the public interest will not be prejudiced by” the extensions because they “will not affect other deadlines, including the dates for expert reports, the evidentiary hearing, and target date.” *Id.*

Lacking opposition and for good cause shown, Motion No. 1478-03 is GRANTED.

The remainder of the investigation will be conducted on the following schedule.

Event	Date
File notice of prior art	May 13, 2026
Cut-off date for supplements to contention interrogatories on issues for which the responding party bears the burden of proof	May 13, 2026
File responsive claim construction briefs	May 18, 2026

Event	Date
Cut-off date for supplements to contention interrogatories on issues for which the responding party does not bear the burden of proof	May 27, 2026
Fact discovery cut-off and completion	May 29, 2026
Claim construction hearing and monthly case management conference	June 3, 2026, at 9:00 am ET
Deadline for motions to compel discovery	June 5, 2026
Exchange initial expert reports (identify tests/surveys/data)	June 10, 2026
One-day mediation session	By June 24, 2026
Submit joint report on mediation	Within 5 business days after mediation
Exchange rebuttal expert reports	June 26, 2026
Monthly case management conference	July 2, 2026, at 11 :00 am ET
File statement of uncontested claim elements pursuant to G.R. 11.3	July 7, 2026
Parties submit joint statement regarding proposed word limits for pre-hearing briefs	July 7, 2026
Expert discovery cutoff and completion	July 9, 2026
Deadline for filing summary determination motions	July 13, 2026
Exchange of exhibit lists among the parties	July 22, 2026
Monthly case management conference	August 4, 2026, at 11:00 am ET
Complainant and respondent serve proposed direct exhibits, and identify physical exhibits	August 4, 2026
Serve proposed rebuttal exhibits, and identify rebuttal physical exhibits	August 7, 2026
Complainant and respondent file pre-hearing statements and briefs	August 10, 2026
Deadline for motions <i>in limine</i>	August 24, 2026
File responses to motions <i>in limine</i>	September 2, 2026
File joint list of unopposed exhibits	September 11, 2026
Final pre-hearing conference	September 16, 2026, at 9:00 am ET
Hearing	September 16–18, 21, and 22, 2026

Event	Date
File final exhibit list	September 29, 2026
Complainant and respondent file initial post-hearing briefs and submit final exhibits	October 6, 2026
Complainant and respondent file responsive post-hearing briefs and file updated statement of uncontested claim elements	October 20, 2026
Final initial determination on violation	January 15, 2027
Target date for completion of investigation (16 months)	May 17, 2027

SO ORDERED.


 Doris Johnson Hines
 Administrative Law Judge